

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #01	CCRB Case #: 201705501	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 06/29/2017 4:10 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 12/29/2018	Precinct: 120
Date/Time CV Reported Thu, 06/29/2017 6:07 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/06/2017 4:27 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Bellantonio	08536	948651	120 PCT
2. POM Robert Paholek	22797	962657	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Melissa Natal	01068	956126	120 PCT
2. POM Martin Abraham	13587	960120	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Bellantonio	Force: Police Officer Robert Bellantonio pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Robert Paholek	Force: Police Officer Robert Paholek used a Taser against § 87(2)(b)	B . Exonerated
C . POM Robert Bellantonio	Force: Police Officer Robert Bellantonio struck § 87(2)(b) with an asp.	C . Exonerated

Case Summary

On June 29, 2017, Sergeant Albert Ng, from the 120th Precinct, called IAB to report a use of level two force. It was received by the CCRB on July 6, 2017 under log 17-25459.

On June 29, 2017 at approximately 4:10AM, § 87(2)(b) an employee of § 87(2)(b), located at § 87(2)(b) in Staten Island, was approached by § 87(2)(b) who asked § 87(2)(b) for a loose cigarette. § 87(2)(b) refused § 87(2)(b)'s request. § 87(2)(b) threw milk crates at the door of the deli and slashed the awning of the deli. § 87(2)(b) called 911. Police Officers Robert Paholek and Robert Bellantonio, both of the 120th Precinct, arrived to the location. PO Paholek and PO Bellantonio issued § 87(2)(b) multiple commands to drop the knife but § 87(2)(b) did not comply. PO Paholek pointed a Taser at § 87(2)(b) and PO Bellantonio pointed his gun at him (**Allegation A**) § 87(2)(b) took a step toward the officers with the knife in his hand and PO Paholek deployed his Taser against § 87(2)(b) (**Allegation B**) § 87(2)(b) dropped the knife in response. PO Paholek took § 87(2)(b) to the ground. While on the ground, § 87(2)(b) refused to provide his hands when asked. PO Bellantonio struck § 87(2)(b) multiple times with an asp (**Allegation C**). Police Officers Melissa Natal and Martin Abraham, also of the 120th Precinct, responded to the scene and assisted in handcuffing § 87(2)(b).

§ 87(2)(b) was arrested as a result of this incident. § 87(2)(b) was charged § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Black and white surveillance video of this incident was obtained from § 87(2)(b) located at § 87(2)(b). The video can be found in Board Review 02 (IA #32), and the transcription can be found in Board Review 03 (IA #51).

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b)'s arrest.
- As of September 26, 2017, § 87(2)(b) has not filed a notice of claim in regards to this incident. (Board Review 04)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] § 87(2)(b)'s criminal case stemming from this incident is still open. His next court date is § 87(2)(b).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first complaint with the CCRB.
- PO Bellantonio has been a member of service for seven years and this is the first case in which he is a subject officer.
- PO Paholek has been a member of service for less than a year and this is the first case in which he is a subject officer.

Findings and Recommendations

Potential Issues

At the 4:09:15 mark in the video of this incident, an individual is seen walking toward the officers and § 87(2)(b) while the officers are in the process of trying to handcuff § 87(2)(b) § 87(2)(b). This individual was not arrested or summonsed and was not named in any police documentation regarding this incident. § 87(2)(g) § 87(2)(b) § 87(2)(b) who placed a call to 911 after seeing § 87(2)(b) with a knife. The investigation was unable to establish contact with § 87(2)(b) § 87(2)(b).

Allegation A: Force-Police Officer Robert Bellantonio pointed his gun at § 87(2)(b)

Allegation B: Force-Police Officer Robert Paholek used a Taser against § 87(2)(b)

§ 87(2)(b) did not have any recollection of this incident. (Board Review 06) § 87(2)(b)

§ 87(2)(b) denied taking any mind-altering drugs prior to going to the deli. § 87(2)(b)

§ 87(2)(b) stated he consumed some beer prior to going to deli; § 87(2)(b) could not estimate how many beers he drank. The last thing § 87(2)(b) recalled was asking an employee at § 87(2)(b) (identified by the investigation as § 87(2)(b) for a loose cigarette. § 87(2)(b) declined § 87(2)(b)'s request. § 87(2)(b) hypothesized that at this point he “blacked out” and had a “mental fit.”

§ 87(2)(b) testified that after he denied § 87(2)(b)'s request for a loose cigarette, § 87(2)(b) became enraged and threw a milk crate at the door of the deli. At this point, § 87(2)(b) § 87(2)(b) § 87(2)(b) asked § 87(2)(b) why he was doing that but § 87(2)(b) did not answer. § 87(2)(b) took a yellow razor from his back pocket and slashed the awning of the store. § 87(2)(b) called 911. Two police officers arrived to the scene. PO Bellantonio pointed a gun at § 87(2)(b) and PO Paholek pointed a Taser at him. They both issued § 87(2)(b) multiple instructions to drop the razor; he refused to comply. PO Paholek then deployed his Taser against § 87(2)(b) causing him to drop the razor and fall to the ground. § 87(2)(b) was unsure as to when PO Bellantonio holstered his gun.

PO Paholek and PO Bellantonio § 87(2)(g) § 87(2)(b) both testified that they received a radio run for a dispute with a knife. When they arrived to the location, § 87(2)(b) had a box cutter in his hand and was rubbing it against the door of the store. There were two store employees inside. Both officers described the box cutter as approximately six to eight inches long with a yellow handle. PO Bellantonio drew his gun and pointed it at § 87(2)(b) PO Paholek drew his Taser and pointed it at § 87(2)(b) Both officers stated that the reason they drew their respective weapons was because § 87(2)(b) had a knife in his hands. Both officers told § 87(2)(b) multiple times to drop the knife. § 87(2)(b) did not drop the knife.

§ 87(2)(b) turned around and started advancing toward the officers with the knife in his hand. PO Paholek told § 87(2)(b) that if he did not drop the knife, he would be Tased. PO Paholek issued this warning to § 87(2)(b) multiple times. § 87(2)(b) took a step toward PO Paholek and PO Paholek deployed his Taser against § 87(2)(b). PO Paholek was approximately ten feet away from § 87(2)(b) when he deployed the Taser. One of the darts hit § 87(2)(b)'s upper clothing and the other hit the window of the store. Neither PO Paholek nor PO Bellantonio believed that the darts penetrated § 87(2)(b)'s skin. § 87(2)(b) dropped the knife as a result of the Taser being deployed but, contrary to § 87(2)(b)'s testimony, he did not go down to the ground. PO Paholek did not recall when PO Bellantonio holstered his gun. PO Bellantonio testified that he holstered his gun after § 87(2)(b) dropped the box cutter.

The TRI report prepared by PO Paholek noted that PO Paholek fired one cycle of the Taser against § 87(2)(b) from approximately fifteen feet away (Board Review 09). One dart missed, one dart fell out of the clothing. No darts penetrated the skin. PO Paholek stated that the Taser was not effective and that § 87(2)(b)'s demeanor did not change after the Taser was deployed. § 87(2)(b) continued resisting the officers.

The video of this incident corroborates PO Paholek and PO Bellantonio's version of events. At 4:07:45, PO Paholek exits the passenger side of the RMP as PO Bellantonio exits the driver's side door. PO Paholek points his Taser and PO Bellantonio draws his gun and points at § 87(2)(b). At this point, § 87(2)(b) is mostly obscured by an ice machine. At 4:07:59, § 87(2)(b) lunges at the officers with something in his hand. The exact moment where PO Paholek deployed the Taser is unclear on the video. It is also unclear when and where § 87(2)(b) dropped the knife. PO Bellantonio is seen holstering his weapon at 4:08:24.



201705501_20170718_1220_DM.mp4

Under the provisions of Patrol Guide Procedure 221.01, an officer's decision to draw and display their firearm should be based on the articulable belief that the potential for serious injury is present (Board Review 10).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation A** be **exonerated**.

Patrol Guide Procedure 221-08 states that "A Conducted Electrical Weapon (CEW) can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs). The use of a CEW is classified as a significant intermediate use of force option such as O.C. pepper spray or impact techniques. A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present" (Board Review 11).

It is undisputed by § 87(2)(b) PO Paholek, and PO Bellantonio that multiple instructions were issued to § 87(2)(b) to drop his weapon. It is also undisputed that PO Paholek warned § 87(2)(b) that if he did not drop the knife, he would be Tased. § 87(2)(b) did not drop the knife. The video also shows § 87(2)(b) lunging toward the officers with the knife in his hand. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **exonerated**.

Allegation C: Force- Police Officer Robert Bellantonio struck § 87(2)(b) with an asp.

No civilians made the above allegation. § 87(2)(b) did not remember this incident and § 87(2)(b) did not see any officers use an asp against § 87(2)(b) § 87(2)(g)

It is undisputed that after PO Paholek deployed the Taser against § 87(2)(b), § 87(2)(b) continued to resist the officers. § 87(2)(b) testified that § 87(2)(b) went down to the ground as a result of being Tased and that he resisted the officers' attempts to handcuff him by pulling his arms away from them and moving his upper body. The officers tried to overcome § 87(2)(b)'s resistance by restraining him and grabbing his upper body to hold him still. § 87(2)(b) testified that PO Bellantonio and PO Paholek were able to handcuff § 87(2)(b) without the help of the other officers who arrived on scene. § 87(2)(b) did not see any officer use an asp against § 87(2)(b)

PO Paholek and PO Bellantonio both testified that after the Taser was ineffective in bringing § 87(2)(b) to the ground, § 87(2)(b) reached toward his waistband. Both officers thought there was a possibility that § 87(2)(b) had an additional weapon on him because they just saw him with a knife. PO Paholek employed a forcible take down against § 87(2)(b). Once on the ground, § 87(2)(b) had his hands under his stomach and was refusing to provide them to the officers. § 87(2)(b) tried to reach for PO Paholek's firearm. PO Paholek alerted PO Bellantonio to this by saying, "He's reaching! He's reaching!" PO Bellantonio struck § 87(2)(b) with the asp. Neither officer could recall how many times PO Bellantonio struck § 87(2)(b) with the asp. PO Paholek could not recall where on his body PO Bellantonio was striking. PO Bellantonio stated he was striking him in the back.

PO Paholek stated that PO Bellantonio did not strike § 87(2)(b) with the asp prior to § 87(2)(b) being on the ground. However, PO Bellantonio testified that after PO Paholek used the Taser but before PO Paholek employed the forcible take down, he struck § 87(2)(b) in the knee with the asp after witnessing § 87(2)(b) reach into his waistband. This had no effect on § 87(2)(b)

While on the ground, both PO Bellantonio and PO Paholek began to suspect that § 87(2)(b) was under the influence of something because he did not seem to be getting tired and the asp strikes did not appear to be affecting him in any way. PO Paholek called for an additional unit and PO Abraham and PO Natal arrived to the scene. PO Abraham and PO Natal were able to assist the

officers in handcuffing § 87(2)(b) PO Paholek vouchered two plastic bags of pharmaceutical drugs containing amphetamines and alprazolam (Board Review 12).

PO Abraham (Board Review 13) and PO Natal (Board Review 14) testified that when they arrived to the scene, PO Bellantonio and PO Paholek were on the ground with § 87(2)(b) trying to handcuff him. § 87(2)(b) refused to provide his hands and was squirming his body in an attempt to evade the officers. PO Abraham stated that PO Bellantonio struck § 87(2)(b) with his asp but could not recall how many strikes PO Bellantonio issued or where he was striking § 87(2)(b)'s body. PO Natal did not recall seeing any officer use their asp against § 87(2)(b).

At 4:08:11 in the video attached in Allegation A, it appears that § 87(2)(b) puts his hands in his front pockets and then at 4:08:23, he reaches into his rear waistband/pocket area. At 4:08:25 PO Bellantonio strikes the back of § 87(2)(b)'s knee while § 87(2)(b) is standing; this has no effect on § 87(2)(b). At 4:08:30, PO Paholek grabs § 87(2)(b)'s waist and takes him down to the ground. At 4:08:34, PO Bellantonio strikes § 87(2)(b)'s body four times; the video is not clear as to where PO Bellantonio is striking § 87(2)(b). At 4:08:52, PO Abraham and PO Natal arrive to the location and run to assist PO Bellantonio and PO Paholek in handcuffing § 87(2)(b). From 4:08:52 to approximately 4:11:15, the officers are on the ground with § 87(2)(b). It is difficult to discern the details of what was happening, including whether § 87(2)(b) reaches for an officer's weapon, and no more strikes of the asp can be clearly seen.

According to PO Bellantonio's TRI report, § 87(2)(b) suffered a scratch to his left knuckle, a scratch to his right arm, a laceration to his left knee, and minor bruising to his back (Board Review 15). § 87(2)(a) PBH §18(6)

According to Patrol Guide Procedure 221-01, an officer must "apply no more than the reasonable force necessary to gain control." Patrol Guide Procedure 221-02 states that impact weapons may be used to handcuff and restrain individuals when de-escalation techniques fail to persuade an uncooperative subject to cooperate. They may not be used against a subject who passively resists.

PO Paholek and PO Bellantonio testified that after § 87(2)(b) dropped the knife, they saw him reach into his waistband, which is corroborated by the video. § 87(2)(g)

It is also undisputed that § 87(2)(b) was resisting the officers while on the ground by refusing to provide his hands. Additionally, both officers stated that § 87(2)(b) reached for PO Paholek's service weapon. § 87(2)(g)

§ 87(2)(g) it is recommended
that **Allegation C** be closed as **exonerated**.

Squad: 1

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date